

PLJ 2023 Lahore (Note) 68

Present: MASUD ABID NAQVI, J.

WALAYAT KHAN etc.--Petitioners

versus

QASIM ALI etc.--Respondents

W.P. No. 108393 of 2017, decided on 26.4.2021.

Civil Procedure Code, 1908 (V of 1908)--

----S. 12(2)--Specific Relief Act, (I of 1877), S. 12--Constitution of Pakistan, 1973, Art. 199--Suit for specific performance--Ex-parte decreed--Application for set aside ex-parte decree--Dismissed--Appeal--Concealment of previous pendency of litigation regarding suit land by respondent in suit--Onus to prove--Challenge to-- Respondent failed to disclose facts about pendency of other litigation in plaint and also during evidence--None of respondent's witnesses including respondent in suit deposed any information about pendency of suit--Respondent failed to initiate any proceedings against petitioners like summoning alleged appointed counsel by petitioners or sending wakalatnama alleged by petitioners to handwriting expert--Evidence produced by respondent is neither convincing nor cogent to discharge onus-- Courts below have neither properly evaluated facts of case nor provisions of law--Petition allowed. [Para 3 & 4] A, B & C

Mr. Wajid Ali Chishti, Advocate for Petitioners.

Ch. Asghar Ali, Advocate for Respondents.

Date of Hearing; 26.4.2021.

ORDER

Brief facts necessary for the adjudication of this lis are that the petitioners filed an application under Section 12(2) CPC to challenge the ex-parte judgment & decree dated 24.03.2011 with the averments that the petitioners had no knowledge about the pendency of suit as they did not receive any notices/summons and neither they appeared before the learned trial Court nor appointed any counsel. Hence, ex-parte judgment & decree dated 24.03.2011 is result of fraud, mis-representation having no effect upon the rights of the petitioners. The Respondent No. 1 filed a contesting reply, Out of divergent pleadings of the parties, issues were framed by the learned Trial Court and parties led their respective oral as well as documentary evidence. After hearing the arguments advanced by both the parties, the learned Trial Court *vide* in order dated 26.03.2016 dismissed the application. Feeling aggrieved, the petitioners/applicants preferred an appeal and the learned appellate Court dismissed the appeal vide judgment and decree dated 31.10.2017. Being dissatisfied, the petitioners/applicants has filed the instant

writ petition and challenged the validity of the impugned order/judgment passed by the learned Courts below.

2. I have heard the arguments of learned counsel for the parties and minutely gone through the record as well as the impugned judgments and decrees.

3. Perusal of the record reveals that a tenant of the petitioners namely Mohammad Hayat son of Mamand filed a suit for Specific Performance against the petitioners regarding the same suit land who is also first cousin (مامون زاد) of respondent's wife on the basis of agreement to sell dated 19.02.1996 which was dismissed *vide* judgment & decree dated 06.09.2006. Appeal against the judgment & decree dated 06.09.2006 was also dismissed by the learned appellate Court *vide* judgment & decree dated 29.08.2009 and both the judgments & decrees of the learned Courts below were maintained/upheld by this Court *vide* judgment & decree dated 04.12.2009 in Civil Revision No. 2478/2009. Thereafter, the petitioners filed ejectment petition against Mohammad Hayat son of Mamand before the then DDOR, Lalian which was accepted *vide* order 04.12.2010 and Mohammad Hayat challenged the ejectment order before higher hierarchy of revenue Courts, however, remained unsuccessful till Board of Revenue Punjab.

During the above described pendency of litigation between the petitioners and Mohammad Hay at son of Mamand who is also first cousin (مامون زاد) of respondent's wife, an agreement to sell dated 02.03.2009 was allegedly executed between the petitioners and respondent wherein pendency of litigation before learned Civil Court is also written with the condition that after the litigation, the petitioners will execute the sale-deed but astonishingly, the respondent namely Qasim Ali filed suit for specific performance against the petitioners on 29.01.2010 during the pendency of the litigation, without disclosing the fact that litigation was still pending about the suit land, and succeeded in obtaining the ex-parte judgment & decree dated 24.03.2011. Hence, the respondent failed to disclose the facts about pendency of other litigation in plaint and also during evidence. None of respondent's witnesses including respondent in the suit deposed any information about the pendency of suit. Onus to prove Issues No. 2 to 6 was placed upon the respondent and in order to dislodge this burden, only respondent namely Qasim Ali appeared as RW-1 and no one appeared on his behalf to support him in proceedings under Section 12(2) CPC. The respondent failed to initiate any proceedings against the petitioners like summoning the alleged appointed counsel by the petitioners or sending the wakalatnama alleged by the petitioners to handwriting expert. The evidence produced by the respondent is neither convincing nor cogent to discharge the onus. While Petitioner No. 1 appeared as AW-1 and produced Azhar Abbas and Allah Yar as AW-2 & AW-3 who folly supported the contents of petitioners' application and without any variations or contradictions in their statements.

4. In view of the foregoing discussion, this Court is of the considered view that the learned Courts below have neither properly

evaluated the facts of the case nor the provisions of law. Hence, by accepting this petition, the ex-parte judgment & decree dated 24.03.2011 and impugned order & judgment, passed by the learned Courts below dated 26.03.2016 and 31.10.2017 in petitioners' application under section 12(2) CPC are set-aside with the direction to the learned trial Court to initiate fresh proceedings by allowing the petitioners to file written statement and to allow the contesting parties to produce oral as well as documentary and thereafter to pass judgment & decree without being influenced by any observation made by this Court or any other Court during the litigation between the petitioners and respondent because no litigation is pending between the petitioners & Mohammad Hayat, presently, as is argued/informed by the counsels. Either of the contesting party can submit this order before the learned trial Court for initiating fresh proceedings in the suit.

(Y.A.) Petition allowed